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The Gazette of the Democratic Socialist Republic of Sri Lanka

EXTRAORDINARY

අංක 2148/48 - 2019 නොවැම්බර් මස 08 වැනි සිකුරාදා - 2019.11.08

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(Published by Authority)

PART I : SECTION (I) — GENERAL

Government Notifications

THE NATIONAL THOROUGHFARES ACT, No. 40 OF 2008

REGULATIONS made by the Minister of Highways & Road Development and Petroleum Resources Development under Section 89 (2) (c) of the Thoroughfares Act, No. 40 of 2008 read with Sections 13 and 14 of the aforesaid Act.

KABIR HASHIM,

Minister of Highways & Road Development and
Petroleum Resources Development.

Battaramulla,
08th November, 2019.

REGULATIONS

- (1) These Regulations may be cited as the National Thoroughfares (User Fee National Highway) Regulations
- (2) These regulations shall apply to -

The Barawakumbuka – Mattala User fee National Highway (Section of Extension of Southern Expressway) and Andarawewa – Hambantota User Fee National Highway declared by Order made under Section 11 of the National Thoroughfares Act, No. 40 of 2008 published in the *Gazette Extraordinary* No. **Gazette No. to be inserted once this has been declared as a National Highway**)

- (3) (1) There shall be levied from a driver of every vehicle being used on the aforesaid User Fee National Highways, a fee in respect of the use of the User Fee National Highway by such driver, at such rates specified in Part A of the Schedule to these regulations.



- (2) The fee shall be charged in respect of the whole distance, or part thereof, of the User Fee National Highway.
- (3) A single rate shall be applied for all categories of vehicles specified in **Part A** of the schedule to these regulations.
- (4) (1) A driver of every vehicle who enters a User Fee National Highway from an interchange shall, prior to being permitted to proceed along such highway, obtain a ticket from the Teller on duty, at such interchange.
- (2) The driver of a vehicle which has been proceeding along the User Fee National Highway, when arriving at the gate of an interchange for the purpose of exiting such User Fee National Highway shall surrender to the Teller the ticket obtained at the interchange through which he entered.
- (3) The Teller shall inform the driver of the amount of the fee payable and accordingly the driver shall pay such amount, prior to being permitted to pass through such interchange, and the teller shall issue a receipt in respect of such payment.
- (5) (1) A driver of every vehicle shall keep the ticket referred to in regulation 4 (1), securely in his possession until he reaches the toll gate of the interchange through which he intends to exit such User Fee National Highway.
- (2) Where the driver is unable to surrender the ticket to the Teller, and the Teller fails to identify the entry location, the driver shall be deemed to have travelled the entire distance of the User Fee National Highway from the furthest possible point of entry to the actual point of exit and shall accordingly be charged a fee at the rates specified in Part A of the schedule to these regulations.
- (6) (1) The Road Development Authority, established under the Road Development Authority Act, No. 73 of 1981, (hereinafter referred to as “the Authority”) shall ensure that, for the purpose of implementation of the provisions of these regulations, sufficient number of gates by taking into account the average Traffic volume at exit and entry points are positioned at the required places along the User Fee National Highways.
- (2) The gates so positioned along the User Fee National Highway shall be owned, operated and maintained by the Authority, and each gate shall be manned by a Teller.
- (3) The Teller shall be responsible for the collection of the user fee at every gate referred to in paragraph (2), in such sum as is specified in Part A of the Schedule to these regulations from every driver using such User Fee National Highways :

Provided that the provisions of these regulations shall not apply to a driver who is driving a vehicle of a category specified in Part B of the Schedule to these regulations, which is exempt from such payment.
- (7) The Teller shall at such times as are specified, hand over the day’s collection of the fees to the officer authorized in that behalf by the Authority and obtain a receipt in respect of such amount.
- (8) The money so collected as user fee shall be credited to the Fund of the Authority and be used for the purpose of developing and maintaining the User Fee National Highways to which these regulations apply.
- (9) For the purpose of these regulations-

“Teller” means an officer who is manning the gates at an interchange;

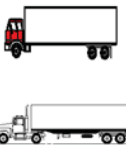
“User Fee National Highways” includes Barawakumbuka – Mattala User Fee National Highway (Section of Extension of Southern Expressway) from Barawakumbuka (178.656 km) to Mattala (200.451 km) and Andarawewa – Hambantota User Fee National Highway from Andarawewa (0.000km) to Hambantota (16.558km).
- (10) The driver of a vehicle who contravenes the provisions of these regulations shall commit an offence and shall on conviction after summary trial by a Magistrate be liable in the case of-
 - (a) a first offence; to a fine not exceeding five thousand rupees; and
 - (b) a second or subsequent offence; to a fine not exceeding fifty thousand rupees.

USER FEE RATES (Rs.) FOR ALL CATEGORIES

Distance	11.3 km	10.4 km	18.4 km	
	Barawakumbuka	Sooriyawewa	Mattala Gate	Hambantota Gate
Sooriyawewa	100			
Mattala Gate	200	100		
Hambantota Gate	200	100	100	

Distances between interchanges

Cars	
	All Cars
	All Jeeps
	All saloon station waggon
Dual purpose Vehicles	
	All cabs (single & double)
	All passenger & goods vans
Light Motor Lorry	
	Lorries & trucks having 2-Axles & 4-wheels

Motor Coaches	
	All Buses (Single & Double doors)
Light Motor Lorries	
	Lorries and Trucks having 2-Axles & 6-Wheels
Heavy Motor Coach	
	Combination Buses
Heavy Motor Lorry	
	Lorries and Trucks having more than 2 - axles

For the operation of Barawakumbuka – Mattala User Fee National Highway (Section of Extension of Southern Expressway) and Andarawewa – Hambantota User Fee National Highway, a single toll rate system for all categories of vehicles shall be used.

Once the entire Southern Expressway Extension from Godagama to Mattala is connected to Southern Expressway this single toll rate shall be adjusted to integrate with current user fee rates of Southern Expressway.

SCHEDULE

Part B

VEHICLES EXEMPT FROM PAYMENT OF USER FEE ON
BARAWAKUMBUKA – MATTALA USER FEE NATIONAL HIGHWAY (SECTION OF EXTENSION OF
SOUTHERN EXPRESSWAY) AND ANDARAWEWA – HAMBANTOTA USER FEE NATIONAL HIGHWAY

1. All vehicles which form part of the Presidential Convoy at any given time for so long as such vehicle is driven along the User Fee National Highway.
2. All vehicles which form part of the Prime Ministerial Convoy at any given time for so long as such vehicle is driven along the User Fee National Highway.